

Ross on Crime
C
Credibility
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Credibility

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[3.9400] Meaning

Credibility means believability. In a witness it means the quality of deserving to have the evidence believed.

[3.9405] Common law

At common law, the credibility of a witness generally depends on the following factors:

1. knowledge of the facts on which the witness gives evidence;
2. impartiality;

3. integrity;
4. truthfulness.

A witness will often fall short of one or more of the above. In these circumstances a trial judge should warn the jury about the credibility of the witness. Examples of classes of witnesses who will often lack credibility are an accomplice; a prison informer; a witness serving an ulterior purpose, such as a tainted witness; a witness with a mental disability; two witnesses who have put their heads together. The categories are not closed.

The prosecutor who calls such a witness will usually try to call further evidence in corroboration of the evidence of the witness.

The cases are full of decisions of judges on credibility. The following are only a few.

Generally, one witness cannot give evidence of the credibility of another witness: *R v Thorne* (1977) 66 Cr App R 6 at 15 (CCA).

But if credibility is close to the issues, such other evidence may be admitted: *R v FTG* (2007) 15 VR 685; 172 A Crim R 340 (CA).

One witness is able to give evidence of the dishonest reputation possessed by another witness: *R v Richardson* [1969] 1 QB 299; [1968] 2 All ER 761; (1968) 52 Cr App R 317, approved *Palmer v The Queen* (1998) 193 CLR 1; 96 A Crim R 213; 151 ALR 16 at 21 [48] per McHugh J.

A failure of defence counsel to comply with *Browne v Dunn* does not adversely affect the accused's credibility: *Oldfield v The Queen* (2006) 163 A Crim R 242 (NSW CCA).

[3.9410] Uniform Evidence Acts

Uniform Evidence Acts ss 102–108 deal specifically with credibility. The Acts of some jurisdictions vary.

All Acts define “credibility” in Dictionary Definitions Part 1.

credibility of a person who has made a representation that has been admitted in evidence means the credibility of the representation, and includes the person's ability to observe or remember facts and events about which the person made the representation.

credibility of a witness means the credibility of any part or all of the evidence of the witness, and includes the witness's ability to observe or remember facts and events about which the witness has given, is giving or is to give evidence.

credibility rule means section 102.

[3.9415] Credibility evidence (s 101A)

Section 101A, which has not been passed in Tasmania, provides:

Credibility evidence

101A Credibility evidence, in relation to a witness or other person, is evidence relevant to the credibility of the witness or person that—

- (a) is relevant only because it affects the assessment of the credibility of the witness or person; or
- (b) is relevant—
 - (i) because it affects the assessment of the credibility of the witness or person; and
 - (ii) for some other purpose for which it is not admissible, or cannot be used, because of a provision of Parts 3.2 to 3.6.

Notes:

- 1. Sections 60 and 77 will not affect the application of paragraph (b), because they cannot apply to evidence that is yet to be admitted.
- 2. Section 101A was inserted as a response to the decision of the High Court of Australia in *Adam v The Queen* (2001) 207 CLR 96.

[3.9420] Credibility rule: s 102

Section 102 is the credibility rule. That section simply provides:

102 The credibility rule

Evidence that is relevant only to a witness's credibility is not admissible.

[There are notes beneath the section about other relevant sections.]

In *Adam v The Queen* (2001) 207 CLR 96; 183 ALR 625; 123 A Crim R 280 Gleeson CJ, Kirby, McHugh and Hayne JJ said (at [35]):

The criterion of operation of s 102 is the *relevance* of the evidence, not any question of its *admissibility*...Thus attention must be directed to how evidence in question is relevant. Is it relevant *only* to a witness's credibility?

In *Leung v The Queen* (2003) 144 A Crim R 441 (NSW CCA) O'Keefe J, with whom the other judges agreed, said (at 448–449 [24]–[30]) that if the evidence affected credibility but was relevant in some other way, there was no contravention of section 102.

[3.9425] Exception: cross-examination of a witness: s 103

103 Exception: cross-examination as to credibility

- (1) The credibility rule does not apply to evidence adduced in cross-examination of a witness if the evidence has substantial probative value.
- (2) Without limiting the matters to which the court may have regard in deciding whether the evidence has substantial probative value, it is to have regard to:
 - (a) whether the evidence tends to prove that the witness knowingly or recklessly made a false representation when the witness was under an obligation to tell the truth; and
 - (b) the period that has elapsed since the acts or events to which the evidence relates were done or occurred.

Substantial probative value

Dictionary Definitions Part 1 defines probative value:

probative value of evidence means the extent to which the evidence could rationally affect the assessment of the probability of the existence of a fact in issue.

In *Jacara Pty Ltd v Perpetual Trustees WA Ltd* (2000) 106 FCR 51 Sackville J, with whom the other judges agreed, said (at 71 [86]):

The statutory concept of “substantial probative value” is, however, given an extended meaning by s 103(2). In determining whether the evidence has substantial probative value, the court is to have regard, inter alia, to whether the evidence tends to prove that the witness knowingly or recklessly gave false evidence when under an obligation to tell the truth.

Approved: *W v The Queen* (2006) 162 A Crim R 264 (Tas CCA) at 289 [91] per Evans J.

In [R v V \(1998\) 100 A Crim R 488](#) (NSW CCA) a complainant alleged sexual assaults against her step-father. In cross-examination she said that B was present at one of the assaults. It seemed that B would have said that there was no such sexual event. The judge refused the defence application to call B citing ss 102 and 103. The CCA said that B should have been called. Smart J, with whom the other judges agreed, said (at 495):

The B evidence was strongly linked to the credit of the complainant on the issue of the relationship between the appellant and the complainant as well as to her credit generally.

The evidence of B, if admitted may have led to a different result.

Appeal allowed. Verdict of acquittal entered. [On the above ground, and others.]

For an example of questioning that violated s 103, see [Lysle v The Queen \[2012\] NSWCCA 20](#).

[3.9430] Further protection: cross-examination of accused: s 104

Section 104 sets out at length restrictions on cross-examination of an accused. The essence of the section is this.

Section 104(1): The section applies to a criminal case.

Section 104(2): No cross-examination on credibility without leave.

Section 104(3): No leave required when a prosecutor's cross-examination is about bias or a motive to be untruthful; inability to recall and prior inconsistent statement.

Section 104(4): Leave must not be given to a prosecutor to cross-examine only on credibility unless the defendant has put good character in issue or the defence has attacked the truth and character of a prosecution witness.

Section 104(5): The prosecution evidence in s 104(4) does not apply to the charges or their investigation.

Section 104(6): Most of the above matters apply to a joint trial.

Leave:

In [Stanoevski v The Queen \(2001\) 202 CLR 115; 177 ALR 285; 118 A Crim R 247](#) Gaudron, Kirby and Callinan JJ pointed out (at [41]) that leave to cross-examine about character without taking account of ss 192 and 112 (discretion).

See also, *R v El-Azzi* [2004] NSWCCA 455.

[3.9440] Exception: rebutting denials by other evidence: s 106

Section 106 provides:

106 Exception: rebutting denials by other evidence

- (1) The credibility rule does not apply to evidence that is relevant to a witness's credibility and that is adduced otherwise than from the witness if:
 - (a) in cross-examination of the witness:
 - (i) the substance of the evidence was put to the witness; and
 - (ii) the witness denied, or did not admit or agree to, the substance of the evidence; and
 - (b) the court gives leave to adduce the evidence.
- (2) Leave under paragraph (1)(b) is not required if the evidence tends to prove that the witness:
 - (a) is biased or has a motive for being untruthful; or
 - (b) has been convicted of an offence, including an offence against the law of a foreign country; or
 - (c) has made a prior inconsistent statement; or
 - (d) is, or was, unable to be aware of matters to which his or her evidence relates; or
 - (e) has knowingly or recklessly made a false representation while under an obligation, imposed by or under an Australian law or a law of a foreign country, to tell the truth;

In *Jacara Pty Ltd v Perpetual Trustees WA Ltd* (2000) 106 FCR 51 Sackville J, with whom the other judges agreed, said (at 72 [87]–[88]):

Section 106 provides that the credibility rule does not apply to certain kinds of rebuttal evidence. In particular, it does not apply to rebuttal evidence that tends to prove that a witness has knowingly or recklessly given false evidence when under an obligation to tell the truth: s 106. Section 108 creates additional exceptions to the credibility rule. These include evidence adduced in re-examination and evidence given, with the leave of the court, of prior consistent statements: s 108(3).

This legislative scheme broadly reflects the recommendation of the Commission in its reports on *Evidence: Interim Report*, vol 1, pars [817]–[820]; *Final Report*, pars [179]–[181], *Draft Bill*, cll 94, 96, 99, 101.

See also *R v PLV* (2001) 51 NSWLR 736; 123 A Crim R 194; [2001] NSWCCA 282; *R v Rivkin* (2004) 59 NSWLR 284; 184 FLR 365; [2004] NSWCCA 7.

[3.9445] Section 107 is repealed

[3.9450] Exception: re-establishing credibility: s 108

Section 108 provides:

108 Exception: re-establishing credibility

- (1) The credibility rule does not apply to evidence adduced in re-examination of a witness.
- (2) The credibility rule does not apply to evidence that explains or contradicts evidence adduced as referred to in section 105, if the court gives leave to adduce that evidence.
- (3) The credibility rule does not apply to evidence of a prior consistent statement of a witness if:
 - (a) evidence of a prior inconsistent statement of the witness has been admitted; or
 - (b) it is or will be suggested (either expressly or by implication) that evidence given by the witness has been fabricated or re-constructed (whether deliberately or otherwise) or is the result of a suggestion;and the court gives leave to adduce the evidence of the prior consistent statement.

In *Pavitt v The Queen* (2007) 169 A Crim R 452 (NSW CCA) McColl JA and Latham J said (at 493 [105]):

The terms of s 108(3) are clear. There is not warrant for reading into the provision a requirement that fabrication be explicitly raised or strongly inferred before the credibility rule is waived.

In *R v Brownlee* (1999) 105 A Crim R 214 (NSW CA) the matters under s 108(3)(b) were hearsay and thus inadmissible. Appeal allowed.